

Form No.HCJD/C-121

JUDGMENT SHEET
LAHORE HIGH COURT
BAHAWALPUR BENCH BAHAWALPUR
(JUDICIAL DEPARTMENT)

Writ Petition No.6494 of 2024

Mst. Kalsoom Akhtar

Vs.

Member Board of Revenue, etc.

Petitioner by:- Syed Jawad Shahid Naqvi, Advocate with petitioner.

Respondents by: Mr. Nadeem Iqbal Chaudhary, Advocate for respondent No.4.

Nemo for respondent No.5.

Date of hearing: - **02.03.2026**

JUDGMENT

RAHEEL KAMRAN, J:- The petitioner Mst. Kalsoom Akhtar through this petition in terms of Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 has called in question the following orders:-

- i. Order dated 06.08.2024, whereby the Member (Consolidation), Board of Revenue, Punjab while accepting revision petition filed by respondent No.4 (Muhammad Azam) set aside order dated 06.06.2023 and as a consequence affirmed order dated 24.11.2022 passed by the District Collector, Lodhran.
 - ii. Order dated 24.11.2022 passed by the District Collector/Deputy Commissioner, Lodhran (respondent No.3), whereby respondent No.4 Muhammad Azam was appointed as permanent Lumberdar of Chak No.360/W.B, Tehsil Dunyapur, District Lodhran.
2. The main contention advanced by learned counsel for the petitioner is that while assessing comparative merit for appointment to the post of Lumberdar by the District Collector, Lodhran, the petitioner

was awarded “zero” marks under the head of “Community”, which became the decisive factor for declining her appointment. It is argued that such assessment is patently arbitrary and contrary to the settled principles governing appointment of a Lumberdar under the Punjab Land Revenue Act, 1967 and the Rules framed thereunder. Learned counsel submits that the finding regarding “Community” was premised on the assumption that the petitioner fell within a third-tier sub-caste, whereas respondent No.4 belonged to the majority community, however, this premise is self-contradictory inasmuch as the petitioner’s real father had remained the permanent Lumberdar of the same village till his demise. Learned counsel emphasized that had the respondents’ calculation been correct, there would have been no occasion for appointment of the petitioner’s father as Lumberdar, if he too allegedly did not belong to the majority community. On this basis, learned counsel prays for setting aside of the impugned orders.

3. Conversely, learned counsel for respondent No.4 has supported the impugned orders, contending that the same have been passed strictly in accordance with law and after due consideration of comparative merits. He submits that respondent No.4 is highly qualified, belongs to the majority community of the village and fulfills all essential requirements for appointment as Lumberdar. To substantiate his contention, learned counsel has placed reliance on the judgments in the cases of “*Khuda Bakhsh v. Abdul Razzaq and others*” (1992 CLC 599) and “*Israr ul Haq v. Member, Board of Revenue, Punjab, Lahore and others*” (2016 SCMR 2090).

4. I have heard learned counsel for the parties at considerable length, examined the pleadings and perused the record. Before advertng to the merits of the controversy, it is necessary to restate the settled legal position that appointment to the office of Lumberdar is not a matter of vested right¹ inhering in any contestant. The office is a public trust coupled with responsibilities relating to revenue administration, assistance to field functionaries, maintenance of liaison between

¹ “*M. Nazir Ahmad v. Muhammad Aslam and others*” (2013 SCMR 363).

inhabitants of the estate and the State machinery and performance of duties assigned under the Punjab Land Revenue Act, 1967 and the Rules framed thereunder. Selection, therefore, lies primarily within the administrative domain of the competent revenue authorities, who by reason of their field experience and proximity to local conditions, are ordinarily the best judges of comparative suitability of candidates². Equally settled, however is the principle that such discretion, though wide, is not unfettered. Where the decision is shown to suffer from misreading of record, disregard of notified criteria, patent arbitrariness, perversity, discrimination or self-contradiction, this Court in exercise of constitutional jurisdiction is competent to examine the legality of the decision-making process. Interference is thus not appellate in nature³ but supervisory, aimed at ensuring that statutory discretion remains confined within lawful bounds.

5. The record reveals that upon the demise of Nawab Din, permanent Lumberdar of Chak No.360/W.B, Tehsil Duniyapur, District Lodhran on 20.09.2020, the post fell vacant and proceedings for fresh appointment were initiated. The petitioner being daughter of the deceased incumbent and admittedly serving as Sarbarah Lumberdar since 2002, applied along with respondent Nos.4 and 5 and other aspirants. The Assistant Commissioner, Duniyapur, while relying upon the report of the Tehsildar, recommended respondent No.4 mainly on the grounds of higher educational qualification and alleged affiliation with the majority community. In that exercise, the petitioner was assigned lesser marks on the premise that she did not belong to the dominant community and was comparatively less educated. Objections were thereafter raised, *inter alia*, regarding non-holding of Ijlas-e-Aam and defective assessment of comparative merit. The District Collector, therefore, remitted the matter for reconsideration in terms of Notification No.SSI-2010/397-LR-II dated 20.04.2010 issued by the Board of Revenue, Punjab. In the subsequent proceedings, after holding Ijlas-e-Aam and reassessing the

² "Muhammad Rafique v. Nazir Ahmed & others" (2007 SCMR 287).

³ "Ghulam Hussain v. Ghulam Muhammad and another" (1976 SCMR 75).

comparative claims, the Assistant Commissioner reconsidered the matter and recommended the petitioner. It was observed that all principal contestants belonged to the Gujjar community and that no lawful basis had earlier been shown for splitting the tribe into sub-classifications so as to deprive one candidate of marks under the head “Community”. The petitioner, besides her hereditary claim as daughter of the deceased Lumberdar, her experience as Sarbarah Lumberdar, landed interest in the village and satisfactory reputation, secured the highest aggregate score and was placed first in merit. The recommendation was, therefore, forwarded in her favour. The District Collector/Deputy Commissioner, Lodhran, however, disagreed with the recommendation. While accepting that the candidates belonged to the Gujjar tribe, he proceeded to further divide the tribe into sub-castes and concluded that respondent No.4 belonged to the numerically superior sub-group, namely *Gujjar Khari*. On that basis, marks earlier accorded to the petitioner under the head “Community” were withdrawn and redistributed in favour of respondent No.4 and another contestant. This recalibration altered the final merit position, whereupon respondent No.4 was appointed permanent Lumberdar vide order dated 24.11.2022. In appeal, the Commissioner remanded the matter but the Member (Consolidation), Board of Revenue, Punjab in revision restored the appointment of respondent No.4 through order dated 06.08.2024. It is these two orders which are under challenge.

6. The pivotal question arising for determination is whether the reassessment made by the District Collector and subsequently endorsed in revision conforms to the statutory framework and the settled principles regulating appointment of Lumberdar.

7. The concept of “community”, as employed in the notified criteria for selection of Lumberdar, is intended to assess whether the candidate belongs to that principal tribe or segment of population whose numerical presence and social standing would facilitate acceptance of the appointee in the estate and ensure effective discharge of official functions. It is not designed to permit endless fragmentation of a recognized tribe into

narrower and narrower sub-castes until a candidate is rendered ineligible for any marks whatsoever. Once it is admitted on record that the petitioner belongs to the Gujar community and that the majority population of the village also comprises Gujjars, complete denial of marks to her under the head “Community” on account of internal sub-classification amounts to an unduly technical and artificial construction of the criteria, unsupported by any express rule.

8. The reasoning adopted by the District Collector is intrinsically self-defeating. The petitioner is daughter of the deceased Lumberdar, who admittedly belonged to the same lineage and remained validly appointed as permanent Lumberdar of the village till his death. If the lineage now attributed to the petitioner is to be treated as socially disqualifying or outside the dominant community for purposes of selection, the same logic would inevitably cast doubt upon the very basis of the earlier appointment of her father. Administrative discretion cannot operate on mutually destructive assumptions. Uniformity and consistency are indispensable facets of lawful decision-making. Furthermore, the petitioner was not a stranger to village administration. The record shows that she had been functioning as Sarbarah Lumberdar since 2002 and had been assisting the deceased incumbent in discharge of official duties. Such long association with the office is a relevant factor, for appointment as Lumberdar is not ceremonial; it requires familiarity with revenue processes, communication with officials, local knowledge and public accessibility. Her hereditary claim, experience, landed interest and placement at the top of comparative merit after due proceedings could not have been displaced except on cogent, objective and legally sustainable grounds, which are absent in the instant case.

9. This Court cannot remain oblivious to the contemporary constitutional ethos of equality, inclusion and fair participation of women in public life. No provision of law has been shown which disentitles a woman from holding the office of Lumberdar. On the contrary, where a female candidate otherwise satisfies the relevant criteria and demonstrates competence, experience and acceptability, her

candidature must receive the same objective consideration as that of any male contestant. Rural governance and revenue administration benefit when capable women are allowed to participate in institutional roles historically monopolized by men. Such participation advances constitutional values of equal opportunity and strengthens public confidence in impartial administration. Any latent bias, direct or indirect, which diminishes a woman's candidature for reasons unrelated to merit, cannot be countenanced.

10. The revisional authority failed to discharge the jurisdiction vested in it. The Member (Consolidation), Board of Revenue, while restoring the appointment of respondent No.4, was required to independently examine whether the Collector's departure from the recommendation and alteration of marks rested upon lawful parameters. Instead of addressing the patent inconsistency in the treatment of the petitioner's community status and the absence of rule-based justification for sub-caste bifurcation, the revisional authority merely affirmed the conclusion.

11. The factors to be considered in appointment of Lambardar have been laid down in Rule 17 of the Land Reforms Manual. The Supreme Court of Pakistan in the case of "Haji Muhammad Zaman Khan v. Member, Board of Revenue, Punjab and others" (2014 SCMR 164), held that the factors enumerated in Rule 17 of the Land Revenue Manual are guiding considerations and are to be kept in view along with other relevant circumstances while selecting the most suitable person for the office of Lumberdar. It was further observed that no single factor is decisive and it is the totality of qualifications, virtues, capability and experience of the competing candidates which must ultimately weigh with the authorities. Once the unlawful deduction of marks under the head "Community" is excluded, the petitioner resumes her rightful position as the highest-ranked candidate. She possesses hereditary linkage to the office, has practical experience spanning years as Sarbarah Lumberdar and no adverse material affecting her character or competence has been brought on record.

12. For what has been discussed above, this petition is allowed. Order dated 24.11.2022 passed by the District Collector/Deputy Commissioner, Lodhran, as well as order dated 06.08.2024 passed by the Member, Board of Revenue, Punjab, are hereby set aside. Consequently, the petitioner Mst. Kalsoom Akhtar is declared entitled to be appointed as permanent Lumberdar of Chak No.360/W.B, Tehsil Dunyapur, District Lodhran. The concerned revenue authorities shall issue the necessary notification in her favour within a period of thirty (30) days from receipt of a certified copy of this judgment. No order as to costs.

(RAHEEL KAMRAN)
JUDGE

Announced in the Open Court on _____

JUDGE

*Azhar**